

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF VENTURA

**Tentative Ruling**

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**2026CUWT065419: MOHAMMAD HANIF vs SWICKARD TOA, LLC, et al.**

**09/23/2026 in Department 20**

**Motion to Compel Arbitration and Stay Proceedings**

The morning calendar in courtroom 20 will normally begin at 8:30 a.m. Please arrive for your hearing no later than 8:20 a.m. The door will be opened before the calendar is called.

For Zoom appearances, all counsel appearing by Zoom must follow the instructions and procedures for Courtroom 20 on the Ventura Superior Court website. IF YOU DO NOT DO SO, YOU WILL NOT BE PERMITTED TO APPEAR BY ZOOM AT THE HEARING.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling, you may email Courtroom20@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending an email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. **If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.**

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d), and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

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**Motion:** Defendants Swickard TOA, LLC; Swickard TOH, LLC; Swickard Thousand Oaks Corporation; and Swickard Thousand Oaks, LLC (collectively "Defendants") Motion to Compel Arbitration and Stay Proceedings

**Tentative:** Defendants' Motion to Compel Arbitration and Stay Proceedings is DENIED. The Court finds that Defendants have not established a valid arbitration agreement.

Plaintiff shall provide notice of this ruling.

**DISCUSSION**

**I. EVIDENTIARY OBJECTIONS**

Defendants' objections Nos. 1-14 to the Declaration of Mohammad Hanif are OVERRULED with the following exceptions: The objection to paragraph 4 "while other technicians in the shop billed a fraction of that" and to paragraph 17 "defendants did not reconsider" are SUSTAINED. (Evid. Code §§ 403, 702.)

## II. INITIAL DETERMINATION RE VALIDITY OF AGREEMENT

In deciding a petition to compel arbitration, trial courts must first decide whether an enforceable arbitration agreement exists between the parties, and then determine the second gateway issue of whether the claims are covered within the scope of the agreement. (*Omar v. Ralphs Grocer Co.* (2004) 118 Cal.App.4th 955, 961.) The initial burden is on the party petitioning to compel arbitration to prove the existence of the agreement by a preponderance of that evidence. (*Villacreses v. Molinari* (2005) 132 Cal.App.4th 1223, 1230.) “Once the petitioner has met that burden, the burden shifts to the party opposing arbitration, to ‘produc[e] evidence of, and prov[e] by a preponderance of the evidence, any fact necessary to the defense.’ [Citation].” (*Ibid.*)

### A. Formation of Agreement To Arbitrate

The initial determination of whether the parties agreed to arbitrate the dispute in question “involves two considerations: (1) whether there is a valid agreement to arbitrate between the parties; and (2) whether the dispute in question falls within the scope of that arbitration agreement.” [Citation.]’ [Citations.]” (*Bruni v. Didion* (2008) 160 Cal.App.4th 1272, 1283.) Once the moving party sets forth the terms of the agreement and evidence that the opposing party signed the agreement, the burden shifts to the opposing party to prove that there is no agreement to arbitrate. (See *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218-219)

Defendants Swickard TOH, LLC (“TOH”), Swickard Thousand Oaks Corporation (“TO Corp.”), and Swickard Thousand Oaks, LLC (“TO LLC”) are not contracting parties to the Dispute Resolution Agreement (“Agreement”) and therefore have failed to meet their initial burden to show that an arbitration agreement exists between Plaintiff and any of them.

Likewise, Defendant Swickard TOA, LLC dba Swickard Acura of Thousand Oaks (“TOA”) has not satisfied its initial burden to establish an agreement to arbitrate. Although the record contains the Agreement bearing Plaintiff’s electronic signature and the Declarations of Carey Dvorak and Brittany Boyak, which set forth the process by which employees reviewed and signed the Agreement, lay a sufficient foundation for the Court to find that Plaintiff did electronically sign the Agreement on December 12, 2022, the Reply Declaration of Brittany Boyak confirms that TOA was not intended to be a party to the Agreement. The existence of a valid agreement to arbitrate is determined by reference to state law principles regarding the formation, revocation, and enforceability of contracts generally. (See *Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.4th 376, 385; *Kinney v. United HealthCare Services, Inc.* (1999) 70 Cal.App.4th 1322, 1327-28.) In light of Ms. Boyak’s statement that TOA was not intended to be a party to the Agreement, the Court concludes that TOA has not established the existence of a contract. Defendant argues that by continuing to work for TOH, Plaintiff impliedly consented to arbitration. The Court is not persuaded. The face of the Agreement reflects it is apparently with TOA. Plaintiff continued to work for TOH. There is no indication in the record that Plaintiff thought he entered into an Agreement with TOH.

As Defendants have failed to carry their burden to show the formation of a contract between Plaintiff and any of them, the motion is DENIED. Plaintiff shall give notice.